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eSignature Recommended Policy Guidelines for State Agencies

The Deputy Directors' working group led by the Department of Personnel & Administration met to glean as much information as possible regarding needs for eSignature functionality throughout the state. Thirteen agencies took part, identifying more than 160,000 documents. Only 54,000 of those documents had a legal necessity for a signature. Signing the remaining 106,000 documents was for other reasons such as acknowledgement.

Solutions being considered are:

- Google Forms
- Google Drive Approvals
- Docusign
- Adobe
- Integrated Electronic Attestation (**IEA**) - a custom solution integrated into the intake system (e.g., SoS business filings, OnBase, SharePoint, or electronic tax filings) which encrypts all sensitive data at rest and in transit.
- Storage of the fact of signature in a database or ledger (approved Blockchain).

There are multiple types of documents, each with recommended solutions in order of preference listed below. Documents that require:

1. a legal signature with sensitive, protected information with security needs.
    a. Use **DocuSign (Preferred)**
    b. Use **IEA**
    c. Database or ledger
2. a legal signature without sensitive, protected information.
    a. Use **DocuSign (Preferred)**
    b. Use **IEA**
    c. Use Adobe
3. acknowledgment with sensitive, protected information with security needs.
    a. Use **IEA (Preferred)**
    b. Use DocuSign
    c. Database or ledger
4. acknowledgment without sensitive, protected information.
    a. Use **Google Forms** or **Google Drive Approvals (Preferred)**
    b. Database or ledger
    c. Use IEA
    d. Use DocuSign
    e. Use Adobe

Additionally, multi-form packages where one or more of the documents contain sensitive, protected information should be treated as the most sensitive document in the package and use DocuSign.

Privacy Concerns:

Any document with sensitive, protected data, including **Personally Identifiable Information** (PII) or protected health information (PHI) as defined by the **Health Insurance Portability and Accountability Act** (HIPAA), payment or banking information, should use a solution that encrypts data in transit and at rest. The state's DocuSign contract supports this and is the preferred solution. As additional solutions are approved by OIT they will be added to this guidance.

Workflow:

DocuSign is the preferred solution for documents that have a workflow that include multiple, known signers, and legal signature.

Cost Concerns:

If a document and/or the documents in a package do not require a legal signature and have no sensitive information, agencies should consider eliminating the use of a signature as proof of acknowledgment to lower costs and simplify usage.

Generating PDF Documents:

Many agencies leverage Adobe Acrobat (not reader) software to create PDF documents. Software like GSuite and Microsoft Office provide the capability to save as PDF. Microsoft's operating systems can natively provide this feature via "Microsoft Print to PDF" and Apple's MaxOSX also allows this feature via "Print to PDF." Unless an individual needs to create custom fillable PDF forms, there is no need to use the Adobe Acrobat family of products.